

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Krista Kano	Team: Team # 2	CCRB Case #: 201302262	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Tuesday, 03/12/2013 11:02 PM	Location of Incident: Forest Avenue and Bement Avenue	18 Mo. SOL 9/12/2014	Precinct: 120
Date/Time CV Reported Tue, 03/12/2013 10:02 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 03/25/2013 10:57 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Frank Desiderato	13351	936473	120 PCT
2. Officers			
3. POM Besim Pelinku	29412	946100	120 PCT
4. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DTS Dennis Canale	00287	921052	ESS 05
2. DTS Melville Maurice	04935	925692	ESS 02

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Force: Officers used physical force against § 87(2)(b) and § 87(2)(b)	A . Officer(s) Unidentified
B . POM Frank Desiderato	Force: PO Frank Desiderato used physical force against § 87(2)(b)	B . Unsubstantiated
C . POM Besim Pelinku	Force: PO Besim Pelinku used physical force against § 87(2)(b)	C . Unsubstantiated
D . Officers	Abuse: Officers searched the car in which § 87(2)(b) was an occupant.	D . Exonerated
E . An officer	Abuse: An officer damaged § 87(2)(b)'s property.	E . Officer(s) Unidentified

Case Summary

On March 14, 2013, § 87(2)(b) called IAB to file a complaint, original log# 13-10483 (encl. 3A-3C). The complaint was received by the CCRB on March 25, 2013 (encl. 3D-3E).

On March 12, 2013 at 10 p.m., § 87(2)(b) was driving in Staten Island with § 87(2)(b) and § 87(2)(b). They were pulled over by ESU officers and § 87(2)(b) was arrested. § 87(2)(b). The following allegations resulted:

- **Allegation A –Force: Officers used physical force against § 87(2)(b) and § 87(2)(b)**
§ 87(2)(g)
It is therefore recommended **Allegations A** be closed as *officers unidentified*.
- **Allegation B –Force: PO Frank Desiderato used physical force against § 87(2)(b)**
- **Allegation C –Force: PO Besim Pelinku used physical force against § 87(2)(b)**
§ 87(2)(g)
It is therefore recommended **Allegations B and C** be *unsubstantiated*.
- **Allegation D –Abuse of Authority: Officers searched the car in which § 87(2)(b) was an occupant.**
§ 87(2)(g)
It is therefore recommended **Allegation D** be *exonerated*.
- **Allegation E –Abuse of Authority: An officer damaged § 87(2)(b) s property.**
§ 87(2)(g)
It is therefore recommended **Allegation E** be closed as *officer unidentified*.

Results of Investigation

[illegible]

Civilian Statement

Complainant: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) Hispanic man with brown hair and brown eyes. He was § 87(2)(b) at the time of the incident.

Arrest Photo

§ 87(2)(b)'s arrest photo shows scratches above his left eyebrow and on his left cheekbone (encl. 4GG).

Statements to Medical Personnel

§ 87(2)(b) told medical personnel at § 87(2)(b) on § 87(2)(b) that he resisted arrest for a false stolen car accusation. He was assaulted with fists and was kicked. He was thrown to the ground and was kicked in the back. He was scraped on his face and low back and had left hip pain.

CCRB Statement

§ 87(2)(b) provided a phone statement on April 17, 2013 (encl. 4A) and was interviewed at the CCRB on April 24, 2013 (encl. 4E-4G). § 87(2)(g)

On March 12, 2013 around 11 p.m., § 87(2)(b) was driving in Staten Island in his sister's gray 2008 Nissan Altima, license plate § 87(2)(b) with his friends, § 87(2)(b) and § 87(2)(b). From Manor Road, § 87(2)(b) took a left to get onto Forest Avenue, which was well lit. He was in the middle of the intersection when he heard a single siren. There was bumper-to-bumper traffic on Forest Avenue and there was nowhere for § 87(2)(b) to pull to the side, so he continued driving. § 87(2)(b) saw lights behind him and thought that there was an ambulance behind him. He wanted to get out of the way, but could not, so he continued to drive at 15 to 20 miles per hour with what he believed to be an ambulance behind him. § 87(2)(b) drove so that he was straddling the two lanes. He flashed his high beams to alert people that he was driving in the middle of the lanes and § 87(2)(b) believed he was escorting the ambulance. There was traffic on either side of his vehicle. At the Clove Road intersection, § 87(2)(b) approached the light and thought that the ambulance would pass him, so he tried to pull over to get out of the way. At the intersection of Bement Avenue and Forest Avenue, § 87(2)(b) was finally able to pull over. At this point, § 87(2)(b) saw that it was an ESU truck. The ESU truck pulled ahead and blocked the road at Bement Avenue. There was no announcement instructing § 87(2)(b) to pull over.

PO1, identified by the investigation as Det. Melville Maurice, exited the vehicle and banged the windshield near the passenger's side. Det. Maurice is a clean-cut white man, 35 to 40 years old, in plainclothes. When § 87(2)(b) saw Det. Maurice exit the vehicle, he unbuckled his seat belt because he was anticipating the officers asking for his ID. Other than the ESU truck, § 87(2)(b) was not aware of any other police presence in the area. As Det. Maurice pounded on the window, the driver, identified by the investigation as Det. Dennis Canale, opened the driver's side door. Det. Canale was a white man in plainclothes whom § 87(2)(b) could not describe further. Det. Canale grabbed § 87(2)(b) by his jacket on his chest and threw § 87(2)(b) face down on the ground.

Det. Maurice took § 87(2)(b) and § 87(2)(b) out of the car. § 87(2)(b) did not see § 87(2)(b) and § 87(2)(b) exit the car. § 87(2)(b) was face-down on the ground and when he

looked under the car, he could see § 87(2)(b) and § 87(2)(b) also lying face-down on the ground.

§ 87(2)(b) was held down by three officers: PO3, a white male in plainclothes, had his knee on § 87(2)(b)'s back; PO4, a white male officer in plainclothes had his knee on § 87(2)(b)'s shoulder; and PO5, a white male in plainclothes was pushing § 87(2)(b)'s face into the ground. PO3, PO4, or PO5 were PO "Frank", identified by the investigation as PO Frank Desiderato and his partner, identified by the investigation as PO Besim Pelinku. § 87(2)(b) told the officers that he was a fugitive agent and that he had his badge. As a fugitive agent, § 87(2)(b) does surveillance for bail bondsmen and carries a shield, baton and handcuffs. The officers told him to shut up and smacked him on the back of the head. After being smacked multiple times by officers, § 87(2)(b) yelled at them to take off the cuffs so that they could have a fair fight.

The officers immediately asked where the car keys were. § 87(2)(b) told them the keys were in his inside jacket pocket. PO6 retrieved § 87(2)(b)'s keys out of his pocket and then announced that he had the keys. PO6 was a 5'5" white male in plainclothes with black hair who looked like he was between the ages of 30 and 40. § 87(2)(b) told them that he also had handcuffs. PO6 forcefully took off § 87(2)(b)'s watch and § 87(2)(b) said he felt like he was being robbed. An officer handcuffed § 87(2)(b) and § 87(2)(b) did not resist. Between § 87(2)(b) being taken from his vehicle and him being handcuffed, roughly two minutes had passed.

As § 87(2)(b) was being handcuffed, three officers searched the vehicle. The officers looked in the driver's side and the passenger's side. § 87(2)(b) saw officers enter the glove compartment, the trunk, the center console, and the sunglass compartment on the roof.

§ 87(2)(b) told them that he had ID, so PO6 went into his back pocket and took his ID. PO6 walked away with his ID and § 87(2)(b) heard the officers saying that the shield was a fake. § 87(2)(b) was still being held down by three officers. He continued to tell them that he worked with officers and that he was a fugitive agent, and each time he did, an officer smacked him in the back of the head. § 87(2)(b) was smacked on the back of his head about ten times.

When § 87(2)(b) looked back at his friends by looking under the car, he could see officers' feet stomping on top of § 87(2)(b)'s and § 87(2)(b) backs.

§ 87(2)(b) still did not know why he was stopped and continued to ask. The officers said shut up. § 87(2)(b) told them to stop smacking the back of his head. The officers tried to get § 87(2)(b) back on the floor by putting their feet in front of him and then pushing him over so that he would lose his balance. § 87(2)(b) did not want to go back on the ground, so each time the officer stepped in front of him, § 87(2)(b) would raise his feet to avoid being tripped. He moved his body from side to side to avoid them. The officers still managed to get him on the ground. The officers that got him on the ground may have been the same officers that held him to the ground initially. One of the officers had his knees on § 87(2)(b)'s neck. The officers picked him up.

PO7, a white man in uniform came over and asked § 87(2)(b) if any of the items in the car were his friends' items. § 87(2)(b) told PO7 that all the items in the vehicle were his. § 87(2)(b) saw PO8 shine a flashlight under the back seat. PO8 was not one of the officers that searched it previously. A broken police scanner and a flashlight were next to the center console, closer to the driver's side. There was also a gray folder with all of § 87(2)(b)'s documentation in the back seat. At some point, an officer looked through § 87(2)(b)'s gray folder.

As the car was being searched, § 87(2)(b) and § 87(2)(b) were still face-down on the ground.

After PO8 finished searching the car, § 87(2)(b) was walked across the street so that he was on the same side of the road as § 87(2)(b) and § 87(2)(b). An officer pushed § 87(2)(b) to the ground again. § 87(2)(b) noticed a white man in a brown or red shirt and khakis standing close by. § 87(2)(b) recognized him as § 87(2)(b) named § 87(2)(b) identified by the investigation as § 87(2)(b). § 87(2)(b) asked § 87(2)(b) if he was a § 87(2)(b) and § 87(2)(b) said yes. § 87(2)(b) asked which § 87(2)(b) and § 87(2)(b) said § 87(2)(b). § 87(2)(f)

§ 87(2)(b)

§ 87(2)(b) and § 87(2)(b) were stood up and put into cars. § 87(2)(b) knew that it was a black unmarked car, but did not know if § 87(2)(b) and § 87(2)(b) were transported together or separately. The majority of the officers left. There was also a crowd of people who had gathered that began to disperse. § 87(2)(b) also left.

§ 87(2)(b) was left alone with PO Desiderato and PO Pelinku. PO Desiderato and PO Pelinku had been two of the officers that were holding § 87(2)(b) to the floor initially, and had smacked him on the back of his head. PO Desiderato and PO Pelinku walked § 87(2)(b) to their vehicle which was an unmarked car. PO Desiderato said that he could smell liquor on § 87(2)(b) and § 87(2)(b) admitted to taking three shots of Hennessy. § 87(2)(b) does not believe he was drunk. A highway patrol officer then arrived and § 87(2)(b) recognized him from when he used to tow trucks on the Staten Island Expressway. § 87(2)(b) did not remember his name but described him as a 5'9" to 5'10" white male with a chubby face. The highway officer gave him a breathalyzer test and § 87(2)(b) blew a .06. The highway patrol officer shook the machine and said that there must be something wrong with it. The highway patrol officer then drove away, leaving § 87(2)(b) alone with PO Desiderato and PO Pelinku.

PO Desiderato and PO Pelinku tried to get § 87(2)(b) into the back seat of their marked vehicle. With one of the officer's hands on the back of his head, § 87(2)(b) hit his head on the door of the car purposefully. The officer did it again, but § 87(2)(b) ducked his head so that he fell on the side of his body into the backseat of the vehicle. § 87(2)(b)'s legs were in the air and parallel to the ground. § 87(2)(b) demonstrated how he kicked twice at the officers, but insisted that he swung his legs around, rather than kicked his feet. PO Desiderato and PO Pelinku grabbed § 87(2)(b) by the legs and feet and pulled him out of the vehicle. They stood him up so that he was leaning against the vehicle and punched him in the face and ribs. They put him back in the car, and PO Desiderato sat in the back seat with § 87(2)(b) as PO Pelinku drove the car to the precinct.

§ 87(2)(b) sustained scrapes on his face, arms and knees and had bruising on his back and right eye. At the precinct, he did not tell anyone that he was injured because he said it was obvious. § 87(2)(b) was released on March 13, 2013 around 5 p.m. and went home. The next morning, his wife commented on how swollen his face was, so § 87(2)(b) went to the hospital on § 87(2)(b).

§ 87(2)(b)

Notice of Claim Statement

The notice of claim, submitted on § 87(2)(b), notes that NYPD officers grabbed § 87(2)(b) threw him to the ground, kned him on his neck, head and face, slapped him on his head and face

and handcuffed him. While he was restrained by handcuffs, NYPD officers kned him on the back of his head, repeatedly slapped him on his head, slammed him into a vehicle and repeatedly punched him in his head, face and ribs (encl. 4HH-4JJ).

Witness: § 87(2)(b)

Phone Statement

§ 87(2)(b) provided a phone statement on May 22, 2013 (encl. 4QQ).

§ 87(2)(b) was driving with § 87(2)(b) on his birthday and there was an ambulance driving behind them. The ambulance pulled them over and officers dragged them out of the car. The officers threw them on the ground. § 87(2)(b) was thrown to the ground on his face and was handcuffed. Officers had their knees on § 87(2)(b) and § 87(2)(b)'s necks and backs. Officers put § 87(2)(b) and § 87(2)(b) into the same car and they were taken to the precinct. § 87(2)(b) was not charged and was released once he arrived at the precinct. He was not released with any paperwork. § 87(2)(b)

Other Civilians Contacted

§ 87(2)(b)'s sister, § 87(2)(b), came to the CCRB on April 24, 2013 and wanted to provide a statement, although she was not present for the incident. She stated that she allowed § 87(2)(b) to borrow her car. § 87(2)(b) had been fighting with a woman named § 87(2)(b) and believed that § 87(2)(b) or one of her friends reported § 87(2)(b)'s car stolen. Ten minutes after § 87(2)(b) took the car, § 87(2)(b) received a call from her mother saying that officers were at her home because they received a report that § 87(2)(b)'s car was stolen. § 87(2)(b) spoke to a female officer who said that officers were following her car and were about to apprehend the driver. § 87(2)(b) told the officer that her brother was driving the car. § 87(2)(b) went to the precinct and her vehicle was released to her (encl. 4MM).

§ 87(2)(b) called the CCRB on June 18, 2013 and stated that he did not recall being on the scene. He stated that anything he had to say would be in the story he wrote.

Attempts to Contact Civilians

§ 87(2)(b) was called five times between April 26, 2013 and May 22, 2013 using a home number and a work number. He was sent a please call letter on May 17, 2013, which was not returned to the CCRB. On May 22, 2013, § 87(2)(b) confirmed contact information, provided a statement and scheduled an interview for May 29, 2013, which he missed. A missed appointment letter was sent that day and was not returned to the CCRB. A search of the Department of Correction showed that he was not incarcerated.

§ 87(2)(b) was sent two letters on April 26, 2013 and May 17, 2013 to an address obtained from a previous arrest report. Searches of the CCRB's Complaint Tracking System, the Department of Motor Vehicles, White Pages, and BADS did not provide a phone number for § 87(2)(b). The letters were not returned to the CCRB. A search of the Department of Correction showed that he was not incarcerated.

NYPD Statements:

Witness Officer: DET. DENNIS CANALE

- *Det. Canale is a § 87(2)(b) white man who stands with brown hair and hazel eyes. He was § 87(2)(b) at the time of the incident*
- *On March 12, 2013, Det. Canale worked at 3:15 p.m. until 11:50 p.m. He and his partner, Det. Maurice, were assigned to ESU Truck A5 and were in uniform.*

Memo book

At 9:40 p.m., Det. Canale picked up a reckless driver. The first offense was passing a red light on Forest Avenue and Willow Road East. The vehicle had its car alarm sounding and passed numerous red lights. It was driving on the wrong side of the road and refused to stop. Det. Canale pursued the vehicle for 30+ blocks. The vehicle was stopped with assistance from the 120th Precinct. Det. Canale blocked the intersection at Bement Avenue and Forest Avenue and the suspect refused to exit the vehicle. Det. Canale removed the driver from the vehicle. The 120th Precinct captain was on scene. The driver was arrested by the 120th Precinct (encl. 5H-5I).

CCRB Statement

Det. Canale was interviewed at the CCRB on August 16, 2013 (encl. 5L-5M).

Around 9:40 p.m. on March 12, 2013, Det. Canale was driving an ESU truck and was patrolling with his partner, Det. Maurice in the passenger seat. The detectives stopped at the exit by Forest Avenue coming off of the expressway when they observed a car swerve into three lanes of traffic and drive through a red light. The car went into oncoming traffic, causing several other vehicles to swerve. The car's alarm was sounding, and Det. Canale saw that there were three people in the car. The car made a left on a service road and continued to drive through several red lights and stop signs. Det. Canale turned on the emergency lights and attempted to stop the vehicle. The car continued to go through red lights, causing other cars to swerve and almost hit a few pedestrians. They followed him down Forest Avenue, and observed the vehicle slow down and red lights, and then quickly drive into the opposite lane, sometimes for half a block, and drive through the red lights. Det. Canale followed him for more than 30 blocks and chased him at speeds ranging from 20 miles per hour to 50 miles per hour. The vehicle made contact with at least one other vehicle, but Det. Canale did not know what happened with that vehicle. Numerous times, Det. Canale went over his loudspeaker instructing the vehicle to stop, but it continued swerving and passing red lights. Det. Maurice went over the radio and informed the 120th Precinct of the vehicle. Det. Canale was not sure what information Det. Maurice provided. At Forest Avenue and Bement Avenue, the car slowed down, so Det. Canale drove into the intersection and cut off the vehicle.

Det. Canale and Det. Maurice exited their vehicle with their guns drawn. Det. Canale thought the car may have been stolen and knew that they were outnumbered. They had not received any calls about a stolen car in the area. Det. Canale approached the driver, identified by the investigation as § 87(2)(b) and Det. Maurice walked around the front of the car to deal with the passengers, identified by the investigation as § 87(2)(b) and § 87(2)(b). Det. Canale yelled at § 87(2)(b) to exit the vehicle more than five times, but § 87(2)(b) yelled "I'm one of you! I'm one of you!" Det. Canale did not know what § 87(2)(b) meant by "I'm one of you," but stated that regardless, uniformed officers always have the right of way. § 87(2)(b) appeared to reach for a metallic object and Det. Canale holstered his weapon, grabbed § 87(2)(b) and yanked him out of the vehicle. Det. Canale did not know in which direction § 87(2)(b) reached, but stated that he grabbed a metallic shield that was not an NYPD shield.

§ 87(2)(b) appeared to be intoxicated or under the influence of something to Det. Canale. He was slurring his words and his eyes were watering and were bloodshot. Det. Canale was still holding onto § 87(2)(b) and § 87(2)(b) yelled “Get the fuck off of me. Mind your fucking business.” § 87(2)(b) swung at Det. Canale, aiming for his face. Det. Canale leaned back to avoid being hit, and grabbed § 87(2)(b). Both § 87(2)(b) and Det. Canale fell to the ground. Det. Canale tried to handcuff § 87(2)(b) but § 87(2)(b) was still swinging and was rolling on the ground. A uniformed officer from the 120th Precinct came over and held § 87(2)(b)’s hands so that Det. Canale could handcuff him. Det. Canale did not recall putting his knee in § 87(2)(b)’s back and did not recall any other officer putting a knee in § 87(2)(b)’s back. Det. Canale was shown a photograph of the arresting officer, PO Desiderato. PO Desiderato did not look familiar to Det. Canale. Det. Canale did not recall what the officer looked like. Many more additional officers from the 120th Precinct arrived including a sergeant, a captain and an inspector. Det. Canale did not know any of their names.

Once § 87(2)(b) was handcuffed, two uniformed officers came over, helped § 87(2)(b) stand up, and brought him to the back of the vehicle. Det. Canale stood up and went to turn the sirens off of his truck, which were still blaring. He walked back towards the scene and saw Det. Maurice speaking with § 87(2)(b) and § 87(2)(b) who were handcuffed. They were saying that they did not know § 87(2)(b) and that he was “fucking crazy.” Det. Canale spoke with the supervisors on scene including the sergeant and the inspector, and told them what had happened while they were chasing § 87(2)(b). The supervisors told Det. Canale that § 87(2)(b) was allegedly a bounty hunter. Det. Canale did not know any of the supervisors’ names. Det. Maurice came over and told Det. Canale that they had another call about an EDP in the 120th Precinct, and they left the scene. Det. Canale did not know what § 87(2)(b) or the other passengers were doing when they left. Det. Canale did not see any officer enter § 87(2)(b)’s car and did not see any officer punch § 87(2)(b) or smack him on the back of his head. Det. Canale did not notice whether § 87(2)(b) was wearing a watch. He did not break § 87(2)(b)’s watch, and did not hear § 87(2)(b) complain of his watch being broken.

Witness Officer: DET. MELVILLE MAURICE

- *Det. Maurice is a § 87(2)(b) white man with black hair and blue eyes. He was § 87(2)(b) at the time of the incident.*
- *On March 12, 2013, Det. Maurice was assigned to ESU A5 with Det. Canale. They were in a marked truck and were in uniform. They worked from 3:15 p.m. until 11:50 p.m.*

Memo book

At 9:40 p.m., Det. Maurice noted that he assisted officers from the 120th Precinct at Bement Avenue and Forest Avenue (encl. 5A-5C).

CCRB Statement

Det. Maurice was interviewed at the CCRB on August 9, 2013 (encl. 5F). § 87(2)(g)

Det. Maurice approached the passenger’s side at gun point. He was not sure if the car was stolen, but did not recall receiving any calls regarding stolen vehicles. A patrol car pulled up behind the vehicle. § 87(2)(b)’s car backed up, as if to hit the patrol car parked behind him.

Det. Maurice ordered the front passenger and back passenger to let him see their hands. He asked multiple times, but they were not compliant. They seemed nervous, but Det. Maurice did not recall any specific actions or statements. An officer from the 120th Precinct helped Det. Maurice take out the front passenger and then the back passenger and put them on the ground. Det. Maurice did not recall if he ordered them to the ground, or if he physically put them on the ground. Det. Canale was on the other side of the vehicle dealing with the driver, so Det. Maurice could not see what he was doing. He was shown a photograph of PO Frank Desiderato, § 87(2)(b) § 87(2)(b)'s arresting officer, but Det. Maurice did not recognize him as the first officer to respond.

Det. Maurice did not use any physical force during the incident. He did not recall ever throwing someone to the ground or putting his knee on anyone's back. He did not see Det. Canale grab § 87(2)(b) § 87(2)(b)'s coat and throw § 87(2)(b) onto the ground. He did not see Det. Canale or any officer put his knee in § 87(2)(b) § 87(2)(b)'s back or see any officer tell him to shut up and smack him on the back of the head.

Det. Maurice was not familiar with § 87(2)(b) § 87(2)(b) § 87(2)(f). Det. Maurice is new to Staten Island. He never saw officers search the vehicle.

Subject Officer: PO FRANK DESIDERATO

- *PO Desiderato is a § 87(2)(b) white man with brown hair and blue eyes. He was § 87(2)(b) at the time of the incident.*
- *On March 12, 2013, PO Desiderato was assigned to work Anti-Crime from 4 p.m. until 12:35 a.m. with PO Besim Pelinku. They were in plainclothes in an unmarked car § 87(2)(e).*

Memo book

At 9:35 p.m., ESU requested additional officers at Forest Avenue and Bement Avenue. At 10:13 p.m., three individuals were arrested. PO Desiderato transported one of the prisoners to the precinct. At 10:35, they arrived at the precinct (encl. 5O-5Q).

Complaint and Arrest Report

§ 87(2)(b) was charged § 87(2)(b) § 87(2)(b) § 87(2)(b) operated a motor vehicle while intoxicated and had in his possession, without permission or authority, an extendable baton also known as an asp. He operated the same motor vehicle in a reckless manner by driving at a high rate of speed on the wrong side of a two-way street, causing oncoming traffic to swerve in order to avoid colliding into him. At the time of the initial stop, § 87(2)(b) had in his possession a working police scanner, a gold shield, an identification stating fugitive apprehension team, and stated numerous times in spontaneous utterance "I'm with the fugitive task force and I'm working with you guys." § 87(2)(b) took a highway authorized breathalyzer on the scene, blowing a .11 and then again at the precinct where the alcohol test revealed at .109. § 87(2)(b) admitted numerous times that he was drinking alcohol with his friends. No force was used (encl. 5R-5V).

Intoxicated Driver Examination (Arresting Officer)

§ 87(2)(b) § 87(2)(b)'s face was flushed, his clothes were disarranged, he was combative, using profanity, his eyes were watery and bloodshot, he was swaying and his speech was slurred. PO Desiderato smelled alcohol on his breath and § 87(2)(b) § 87(2)(b) stated "Yes, I was drinking" (encl. 5W-5X).

Property Clerk Invoice

PO Desiderato vouchered a watch and noted that the face of the watch was cracked. He also vouchered a silver MAG light, a black flashlight, a Radio Shack scanner, white metal handcuffs, a black expandable baton, a black pouch used to hold the baton, a photo ID, Rayovac batteries and a yellow metal badge (encl. 5Y-5BB).

CCRB Statement

PO Desiderato was interviewed at the CCRB on October 23, 2013 (encl. 5EE-5FF).

On March 12, 2013 around 9:35 p.m., PO Desiderato and his partner, PO Pelinku received a radio call that ESU was trying to stop a vehicle. The driver was not stopping and ESU called for backup. PO Desiderato and PO Pelinku drove to Forest Avenue and Bement Avenue. PO Desiderato did not recall who was driving.

When PO Desiderato arrived at the scene, all three occupants were outside of the vehicle. PO Desiderato did not recall if they were standing or sitting or if any officers were speaking with them. He did not recall where they were in relation to the car. They were not yet handcuffed. PO Desiderato did not remember what they were doing when they arrived. PO Desiderato did not see an officer have his knee on any of the occupants' shoulders or shoving their faces into the ground. PO Desiderato did not do that to any of the occupants.

It was determined that § 87(2)(b) was drunk. PO Desiderato and PO Pelinku handcuffed § 87(2)(b). No other officer helped. PO Desiderato needed PO Pelinku's help to gain control of § 87(2)(b)'s arms. PO Desiderato did not remember if ESU officers were still present. § 87(2)(b) was combative and was physically and verbally resistant. PO Desiderato did not recall what § 87(2)(b) said. § 87(2)(b) moved his arms and legs and squirmed so the officers had difficulty handcuffing him. PO Desiderato did not trip and flip § 87(2)(b) to the ground in order to handcuff him. PO Desiderato did not remember if § 87(2)(b) was ever on the ground. PO Desiderato did not remember whether he handcuffed the two passengers.

PO Desiderato did not remember § 87(2)(b) wearing a watch. PO Desiderato did not take off § 87(2)(b)'s watch and did not break it. It is not procedure to remove watches before handcuffing someone. § 87(2)(b) did not complain that his watch was broken. § 87(2)(b) repeatedly said that he was a fugitive agent and told the officers that he was one of them. This led PO Desiderato to believe he was acting as a police officer. § 87(2)(b) mentioned he was working for a detective in Brooklyn, but did not name the detective. PO Desiderato denied smacking § 87(2)(b) on the back of the head when he said that he was a fugitive agent and denied seeing any other officer do so.

PO Desiderato searched § 87(2)(b)'s car because the search was incident to his lawful arrest. Initially, PO Desiderato did not recall what specific items he recovered, but stated that he found the items on the front passenger seat. PO Desiderato did not remember if PO Pelinku helped him search the car. ESU officers did not search the car. PO Desiderato was still outside of the vehicle when he recovered the items. He did not sit inside of the car. He leaned in to obtain the items. The search lasted one to two minutes. PO Desiderato was presented the property voucher he prepared and reviewed it. He recalled that the scanner, handcuffs, and security badge were all in the front passenger seat.

A highway officer arrived and determined that § 87(2)(b) was drunk. PO Desiderato did not know the name of the highway officer and did not remember if § 87(2)(b) took a breathalyzer.

PO Desiderato and PO Pelinku struggled to place § 87(2)(b) in their vehicle. He was combative, pushed the officers and was squirming. He was already handcuffed, but aggressively moved his body back and forth. § 87(2)(b)'s head did not make contact with the vehicle's door. PO Desiderato did not knock § 87(2)(b)'s head into the door. § 87(2)(b) kicked PO Desiderato when they were trying to place him in the car. PO Desiderato did not remember if § 87(2)(b) was removed from the vehicle while they were still on the scene. PO Desiderato denied taking § 87(2)(b) out of the vehicle to punch him. PO Desiderato did not see PO Pelinku take § 87(2)(b) out of the car and punch him. There were no other officers in the area when they were trying to place him in the car.

PO Desiderato did not see any injuries on § 87(2)(b) and did not hear him complain of any injuries. PO Desiderato was shown § 87(2)(b)'s arrest photo and his attention was drawn to the marks on § 87(2)(b)'s eyebrow and cheek bone. PO Desiderato did not see those injuries at the scene and did not know how § 87(2)(b) obtained them. PO Desiderato did not remember if those marks were already on § 87(2)(b)'s face when they arrived at the scene.

PO Desiderato was not familiar with § 87(2)(b) § 87(2)(f). There were additional officers present, but PO Desiderato did not remember who. There were no other plainclothes officers. PO Desiderato did not remember if there were any supervisors on scene.

PO Desiderato was presented the IDTU paperwork in which he noted that § 87(2)(b) said he had been drinking. PO Desiderato confirmed that § 87(2)(b) told him he had been drinking, but did not remember if § 87(2)(b) said what he had drank or how much he had drank.

Subject Officer: PO BESIM PELINKU

- *PO Pelinku is a § 87(2)(b) white man with black hair and hazel eyes. He was § 87(2)(b) at the time of the incident.*
- *PO Pelinku worked Anti-Crime with PO Frank Desiderato from 4 p.m. on March 12, 2013 until 12:35 a.m. the following day. They were in plainclothes in a black ford fusion, § 87(2)(e)*

Memo book

At 10 p.m. PO Pelinku responded to an ESU call for backup on Forest Avenue. At 10:05 p.m., he arrived on scene and ESU had a car stop. At 10:13 p.m., PO Desiderato arrested three people regarding the stop. At 10:30 p.m. They arrived at the 120th Precinct Stationhouse and PO Pelinku assisted PO Desiderato with the arrest (encl. 5HH-5II).

CCRB Statement

PO Pelinku was interviewed at the CCRB on October 29, 2013 (encl. 5LL). § 87(2)(g)

PO Pelinku did not recall interacting with the passengers of the vehicle or if PO Desiderato or another officer interacted with them. He did not recall if § 87(2)(b) was ever on the ground, if he threw § 87(2)(b) to the ground, or if he stepped on § 87(2)(b). He did not recall if another officer did. He did not recall if § 87(2)(b) admitted to drinking.

PO Pelinku did not recall if he smacked § 87(2)(b) on the back of the head and told him to shut up and did not recall if another officer did so. He did not recall if § 87(2)(b) was wearing a watch

or if § 87(2)(b) complained that his watch was broken. PO Pelinku was shown a photo of § 87(2)(b)'s broken watch. He did not recall seeing the watch and did not recall if he saw how it was broken. PO Pelinku did not recall searching § 87(2)(b)'s car and did not recall if PO Desiderato or another officer searched the car. PO Pelinku did not recall if it was taken back to the precinct. PO Pelinku did not drive the car back to the precinct.

PO Pelinku did not handcuff § 87(2)(b) and did not recall who did. § 87(2)(b) was irate and hesitant to get into PO Pelinku's vehicle. PO Pelinku was holding onto § 87(2)(b) but did not recall where his hands were on § 87(2)(b)'s body. PO Pelinku had to ask § 87(2)(b) to get into the car. § 87(2)(b) faced the car, but would spin around to face PO Pelinku. He did not recall if § 87(2)(b)'s head made contact with the car or if he purposefully knocked § 87(2)(b)'s head into the car. He did not recall if he pushed § 87(2)(b) into the car. He did not recall if PO Desiderato helped him place § 87(2)(b) in the car. He did not recall how § 87(2)(b) entered the car. Once § 87(2)(b) was in the car, he was not removed again until they arrived at the precinct. PO Pelinku did not recall if he removed § 87(2)(b) from the car on scene and punched § 87(2)(b). He did not recall if PO Desiderato or another officer did so. In the car, § 87(2)(b) shifted his body from one side of the car to the other.

PO Pelinku was presented § 87(2)(b)'s arrest photo which shows marks on his eyebrow and cheekbone. PO Pelinku did not recall the injuries, if he saw any injuries on § 87(2)(b) if § 87(2)(b) complained of any injury, or if § 87(2)(b) had any injuries prior to PO Pelinku's physical interaction with him. PO Pelinku did not remember § 87(2)(b) making physical contact with anyone else.

Medical Records

§ 87(2)(a) PBH §18(6)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

NYPD Documents

SPRINT § 87(2)(b)

At 10:03 p.m., ESU 5, identified by the investigation as Det. Maurice and Det. Canale requested Highway to respond to Bement Avenue and Forest Avenue. The 120th Precinct commanding officer requested that Highway arrive with a breathalyzer. At 10:09 p.m. Highway District PO Glatz was notified. At 10:13 p.m., Det. Maurice and Det. Canale stated that 120th Precinct Anti-Crime was handling the situation (encl. 6A-6B).

SPRINT § 87(2)(b)

At 9:47 p.m., the 120th Precinct Anti-Crime team, identified by the investigation as PO Desiderato and PO Pelinku, reported that a group of youths were running through red lights and there was a criminal arrest. At 9:47 p.m., ESU requested additional units, saying that the kids were not stopping. The Anti-Crime team verified one arrest. Highway District PO Randazzo was notified (encl. 6C-6D).

Intoxicated Driver Examination Report and Video

PO Latour noted that § 87(2)(b) had a strong odor of alcohol on his breath. He determined that § 87(2)(b) was had slurred speech, swayed, was unsteady when walking and turning, was

unsteady on one leg, and as inaccurate in the finger to nose test. PO Latour determined that § 87(2)(b) was under the influence of alcohol (encl. 6M-6S).

Other Evidence

Summons/Arrest for Incident and Disposition

- Case number § 87(2)(b) remains open. The next scheduled court date is § 87(2)(b) in § 87(2)(b)

Status of Civil Proceedings

- § 87(2)(b) filed a Notice of Claim with the City of New York on § 87(2)(b), claiming assault and battery seeking monetary redress for injuries and damages for physical, mental, and psychological pain and suffering, embarrassment, humiliation and punitive damages, as well as attorney fees and costs as redress (encl. 4HH-4JJ).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) § 87(2)(b)
- This is the first CCRB complaint involved § 87(2)(b) or § 87(2)(b) (encl. 2D-2E).

Subject Officers CCRB History

- PO Desiderato has been a member of the service for 8 years and there are no substantiated CCRB allegations against him (encl. 2A).
- PO Pelinku has been a member of the service for 5 years and there are no substantiated CCRB allegations against him (encl. 2B).

Conclusion

Identification of Subject Officers

The SPRINTs only noted that ESU5 and Anti-Crime were present for the incident. However all interviewed officers and § 87(2)(b) stated that there were more officers who responded to the scene. The sector maps showed that the incident occurred near the intersection of Sectors J, K and M. However, the roll call did not note sector assignments. None of the officers could name additional officers, besides their partners, who were present.

§ 87(2)(b) stated that three plainclothes white men, including PO Desiderato and PO Pelinku smacked him on the back of the head and told him to shut up. Other officers, whom § 87(2)(b) could not describe, threw him to the ground once he was handcuffed. § 87(2)(b) saw officers stomping on § 87(2)(b) and § 87(2)(b) but did not see which officers. In his phone statement, § 87(2)(b) did not make this allegation and he did not provide an official statement to the CCRB. PO Pelinku and PO Desiderato acknowledged that they placed § 87(2)(b) in their car and transported him. § 87(2)(g)

§ 87(2)(b) alleged that multiple uniformed officers searched his car. PO Desiderato, who was in plainclothes, acknowledged searching § 87(2)(b)'s car. § 87(2)(g)

§ 87(2)(b) alleged that PO6, a 5'5" white man in plain clothes with dark hair who was 30 to 40 years old, removed his watch. PO6 remains unidentified. § 87(2)(b)'s watch was broken during the incident, but he did not see who broke it or how it was broken. All interviewed officers denied breaking § 87(2)(b)'s watch. § 87(2)(g)

Allegations not pleaded

Det. Canale and Det. Maurice stated that they approached § 87(2)(b)'s vehicle with guns drawn because they had been chasing § 87(2)(b) for over thirty blocks and because they knew that they were outnumbered. § 87(2)(b) and § 87(2)(b) did not allege that the officers drew their guns. § 87(2)(g)

§ 87(2)(b) alleged that officers stomped on § 87(2)(b). Contact was established with § 87(2)(b) and he did not make this allegation. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A –Force: Officers used physical force against § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) stated that multiple officers smacked him on the back of his head and told him to shut up every time he told the officers that he was “one of them.” He also saw officers stomping on § 87(2)(b) and § 87(2)(b). § 87(2)(b) did not make this allegation in his phone statement. After § 87(2)(b) was handcuffed, he was thrown to the ground.

All interviewed officers denied using force against § 87(2)(b) and § 87(2)(b) and denied seeing any other officer use force against them.

§ 87(2)(g) It is therefore recommended that **Allegation A** be closed as *officers unidentified*.

Allegation B –Force: PO Frank Desiderato used physical force against § 87(2)(b)

Allegation C –Force: PO Besim Pelinku used physical force against § 87(2)(b)

§ 87(2)(b) alleged that PO Desiderato, PO Pelinku and another plainclothes officer, smacked him on the back of head and told him to shut up every time § 87(2)(b) told them that he was a fugitive agent. This happened about ten times. After § 87(2)(b) was handcuffed, officers threw him to the ground. Later on, PO Pelinku and PO Desiderato put § 87(2)(b) into the car and purposefully hit his head into the door. They tried to do it again, but § 87(2)(b) ducked his head and landed sideways into the car. § 87(2)(b) moved his legs back and forth in the direction of the officers, but insisted that he did not kick at the officers. PO Desiderato and PO Pelinku pulled § 87(2)(b) out of the car and punched him in his ribs and face. At this time, only § 87(2)(b) PO Desiderato and PO Pelinku were in the area.

§ 87(2)(b)'s arrest photo shows scratches above his left eye and on his left cheekbone. § 87(2)(b) provided photos of his injuries which were all taken on March 14, 2013. Photo 1 shows a bruise

on his left eye. Photo 2 shows bruises on his right arm. Photo 3 shows bruises on his left arm. Photo 7 shows cuts on his chin. Photos 9 and 10 shows bruises and cuts on his shoulders.

According to § 87(2)(b)'s medical records, he told medical personnel he received the injuries while resisting arrest.

PO Desiderato and PO Pelinku stated that they struggled to place § 87(2)(b) in the vehicle. They described him as combative, aggressive and hesitant. PO Desiderato stated that § 87(2)(b)'s head never made contact with the door of the vehicle and denied pushing § 87(2)(b)'s head into the car. § 87(2)(b) kicked PO Desiderato as they placed him in the car. PO Desiderato did not remember if § 87(2)(b) was ever taken out of the vehicle on the scene. He denied taking § 87(2)(b) out of the car and punching him. He did not observe any injuries on § 87(2)(b) and did not hear § 87(2)(b) complain of injuries. PO Desiderato did not see the abrasions which are clearly displayed in § 87(2)(b)'s arrest photo and did not notice if § 87(2)(b) had them prior to interacting with PO Desiderato.

PO Desiderato did not recall if he ever hit § 87(2)(b)'s head into the car or if he ever removed § 87(2)(b) from the car and punched him. He did not recall the injuries shown in § 87(2)(b)'s arrest photo and did not recall how he sustained those injuries. He did not recall if § 87(2)(b) ever complained of injury.

It is undisputed that § 87(2)(b) had injuries. However, by his own statement to medical personnel, he resisted arrest. § 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegations B and C** be *unsubstantiated*.

Allegation D –Abuse of Authority: Officers searched the car in which § 87(2)(b) was an occupant.

It is undisputed that § 87(2)(b)'s vehicle was searched. § 87(2)(g)

§ 87(2)(b) stated that officers looked in the driver's side and the passenger's side and entered the glove compartment, the trunk, the center console and the sunglass compartment on the ceiling. Later, a different officer looked in the vehicle by shining a flashlight under the back seat.

PO Desiderato stated that he searched § 87(2)(b)'s vehicle because it was incident to § 87(2)(b)'s lawful arrest. PO Desiderato recovered a police scanner, handcuffs and a security badge from the front seat of the car. He did not sit inside of the car. He leaned in to obtain the items. The search lasted one to two minutes. PO Desiderato vouchered a silver MAG light, a black flashlight, a Radio Shack scanner, white metal handcuffs, a black expandable baton, a black pouch used to hold the baton, a photo ID, Rayovac batteries and a yellow metal badge.

By his own account and each of the officers' statements, § 87(2)(b) yelled throughout the incident that he was "one of you" and a fugitive agent. § 87(2)(b) was ultimately arrested § 87(2)(b)

A warrantless search of a vehicle is justified when the circumstances of the situation give officers have cause to believe there is evidence in the vehicle which is connected to the arrest. People v. Galak 81 N.Y.2d 263 (encl. 1A-1D).

§ 87(2)(b) was not initially stopped for impersonating an officer. Once he was stopped, his repeated statements that he was a “fugitive agent” and “one of you” prompted officers to believe he was impersonating an officer. PO Desiderato stated that he only recovered items that were in plain view and only leaned into the car. § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegation D** be *exonerated*.

Allegation E –Abuse of Authority: An officer damaged § 87(2)(b) s property.

§ 87(2)(b) stated PO6 § 87(2)(g) removed his watch. When § 87(2)(b) s watch was returned to him, the face was cracked. § 87(2)(b) did not see if PO6 or another officer broke his watch, or how it was broken.

PO Desiderato vouched the watch and noted that the face was cracked. PO Desiderato and all interviewed officers denied breaking § 87(2)(b) s watch and denied seeing another officer break his watch.

§ 87(2)(g) It is therefore recommended **Allegation E** be closed as *officer unidentified*.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date